

CONTROLLED UNCLASSIFIED INFORMATION

Sole Source (Including Brand Name) Justification - Simplified Procedures for Certain Commercial Items

NOTE: If a Justification was approved for the preceding acquisition, a copy of the approved Justification for the predecessor action must be included in the staff package for approval of the instant Justification. This applies to Justification staff packages that are submitted for review and approval at a level above the contracting officer. The predecessor Justification will be used as a reference document by the approving official.

Is this a new or amended J&A Document? ☒ New ☐ Amended (Prior to Award Only!)

Is this a Bridge Action as defined in the [AF Bridge Action Reduction Plan](#)? ☐ Yes ☒ No

Funding level for this acquisition: ☒ >SAT and ≤ \$750K ☐ > \$750K and ≤ \$15M

Contracting Activity: 325 Contracting Squadron

Purchase Request / Local ID Number:

Program / Project (and PE, if applicable): Wetstone Gulf Range Communications Systems Maintenance Services

Program Type (PEO or Other Contracting): Other Contracting

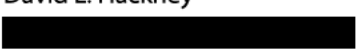
Authority: ☒ AFFARS 5313.501 - 10 U.S.C. 3572, Implementation of Simplified Acquisition Procedures (41 U.S.C. 1901)

☐ AFFARS 5313.501 - 10 U.S.C. 3403, Special Emergency Procurement Authority (41 U.S.C. 1903)

Estimated Contract Cost (including options): \$443,580.59

Justification Type: ☐ Class ☒ Individual

COORDINATION ([AFFARS 5306.304\(a\)](#))

Date 21 Jan 2025	Project Lead / Program Mgr / Requiring Activity 	Signature 
Date 21 Jan 2025	Contracting Officer David L. Hackney 	Signature 

APPROVAL ([AFFARS 5306.304\(a\)](#))

Date 21 Jan 2025	Large Services Flight Chief, Contracting Officer Scott E. Dubuque 	Signature 
---------------------	---	---

Sole Source (Including Brand Name) Justification - Simplified Procedures for Certain Commercial Items

I. Contracting Activity.

USAF, 325th Contracting Squadron, Tyndall Air Force Base, Florida - Justification for other than full and open competition.

II. Nature and/or description of the action being processed.

This is a Sole Source Justification to support direct award to ORION Systems Incorporated, a registered Small Business, CAGE: 1P614. The contract type will be a firm-fixed priced contract.

III. Description of supplies/services required to meet agency needs.

On behalf of the 53rd WEG, the 81st Air Control Squadron is seeking ORION Systems Incorporated (contractor) communication system maintenance, operation, and help-desk support.

IV. Statutory authority permitting other than full and open competition.

The authority found at FAR 13.501(a)(1) and (2) Only one responsible source and no other supplies or services will satisfy agency requirements is sufficient for the justification and approval as Orion is the OEM and the only vendor capable of maintaining their equipment. The cost to replace all the equipment by another contractor would be a substantial cost to the requirement owner and the taxpayer and would not reasonably be recouped over the life of the equipment.

V. Demonstration that the contractor's unique qualifications or nature of the acquisition requires the use of the authority cited above (applicability of authority).

The current system and software used by the 53rd WEG to meet their specific mission needs is an ORION product. The system is an OEM Orion equipment that has been in place since the original purchase that was made in 2015 with regular upgrades to software and equipment over time. The most recent upgrade to proprietary equipment was conducted in 2023 at a cost of [REDACTED]. This cost savings for the replacement of equipment is over an 8 year timespan at an approximate cost of [REDACTED]. This replacement is to ensure system functionality and joint interoperability.

Other sources for the similar and or like equipment have been found during the market research process, but those costs to replace all the equipment will be approximately a [REDACTED] cost to the Government to replace the communication suite. Included in this cost are the costs for all operating equipment and all bench-stock equipment that is available when equipment fails which is essential to maintain WSEP exercise operations. The second portion of the contract is the ability for all the communication to be able to link and communicate with each other for an uninterpreted service. Lastly, the software that is used to communicate with the equipment in place is owned by the contractor. If a piece of equipment is to be replaced by another contractor's equipment, replacing part of the existing system would render the rest of the equipment inoperable and require a complete system replacement. For the system to be operable, the whole system would need to be replaced for all systems to be able to communicate at the central location, the satellite locations and with the with the aircrafts.

As of right now, the only process to replace equipment is by the current contractor, or replace all the equipment at an exorbitant cost to the taxpayer. The approximate cost to replace all equipment for an operable system is approximately [REDACTED]. Minimal savings, if any, would be achieved through moving to another company's system; however, the amount of time to recoup replacement cost far exceeds the lifespan of the equipment and the service provided to that equipment. If a replacement were to happen, this would also cause the equipment to be disabled until the system could come back on-line.

VI. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable.

Market research has been conducted to find comparable contractors who are capable of supplying equipment and capable of providing services on voice communication equipment. There are two known companies that are available on GSA that are similar in nature to what Orion is performing at this time.

Sole Source (Including Brand Name) Justification - Simplified Procedures for Certain Commercial Items

Based on searches of mandatory sources, open market, and previously awarded contracts, the sole distributor of the ORION system capable of providing ORION help-desk support at this time is the ORION Systems Incorporated. It is recommended that ORION help-desk requirement be solicited as a sole source, due to recent significant investment with warranties and lower cost to the government due to efficiencies with custom built for the Air Force in-place equipment.

Orion manufactures and supplies their own equipment. They also provide the the service maintenance to that equipment. No other know contractor in the market is capable of providing proper services to the equipment supplied by Orion. This statement is true for the two contractors found on GSA.

VII. Determination by the Contracting Officer that the anticipated cost to the Government will be fair and reasonable.

As required by FAR 13.106-3(a), the Contracting Officer has determined the anticipated costs to the Government will be fair and reasonable. This instant acquisition will be evaluated in accordance with FAR Subpart 13.5, FAR 13.5(a)(1), and FAR 13.501(a)(1)(ii). The basis for award of the contractors proposal will be evaluated using the procedures found at FAR 13.106-3. Price analysis will be accomplished to ensure that contractor's proposed pricing is in line with prices offered for similar products and services in the commercial market or under previous historical acquisitions with similar requirements. Analysis will be accomplished to determine the pricing to be a fair market price.

VIII. Description of the market research conducted and the results, or a statement of the reasons market research was not conducted.

ORION Systems Incorporated holds proprietary ownership of the ORION equipment and software with no authorized 3rd party servicers outside of Orion. Based on the proprietary nature of the ORION support, it is recommended to solicit as a sole source. Market research resulted in higher costs in equipment purchases.

IX. Any other facts supporting the use of Other Than Full and Open Competition.

Not Applicable

X. List of any sources that expressed, in writing, an interest in the acquisition.

Not Applicable

XI. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before making subsequent acquisitions for the supplies or services required.

It is the goal of the 325th Contracting Squadron to utilize the most efficient and affordable services in an effort to meet the customer's needs in a timely manner; while promoting maximum competition. The 325th Contracting Squadron will continue to monitor the market place in an effort to obtain maximum sources and competition to support future acquisitions.

XII. Certification by the Contracting Officer.

As evidenced by my signature above, I have determined this document to be both accurate and complete to the best of my knowledge and belief.

Sole Source (Including Brand Name) Justification - Simplified Procedures for Certain Commercial Items

XIII. Certification by the technical/requirements personnel.

As evidenced by my (our) signature(s) above, I (we) certify that any supporting data contained herein, which is my (our) responsibility, is both accurate and complete.